

also in the same, and *appointed precedents to be looked over* as well in the Court of Chancery as in other courts, if any could be found touching the point in question; whereupon several precedents were produced before them, some in Court of Chancery and some in the Court of Wards, where parties trustees were chargeable only according to their several and respective receipts, and not one to answer for the other, but no precedent to the contrary was produced to them. Whereupon his Lordship, after *long and mature deliberation on the case, and serious advice with all the said Judges*, did this day

in open Court declare the resolution of his Lordship [*264] and the said Judges — That where lands *or leases

were conveyed to two or more upon trust, and one of them receives all or the most part of the profits, and after dyeth or decayed in his estate, his co-trustee shall not be charged or be compelled in the Court of Chancery to answer for the receipts of him so dying or decayed, unless some practice, fraud, or evil dealing appear to have been in them to prejudice the trust; *for they being by law joint tenants or tenants in common, every one by law may receive either all or as much of the profits as he can come by.* It is no breach of trust to permit one of the trustees to receive all or the most part of the profits, it falling out many times that some of the trustees live far from the lands and are put in trust out of other respects than to be troubled with the receipt of the profits. But his Lordship and the said Judges did resolve, that if upon the proofs or circumstances the Court should be satisfied that there had been any *dolus malus*, or any evil practice, fraud, or ill intent in him that permitted his companion to receive the whole profits, he should be charged though he received nothing."

2. **Trustee not liable for joining pro formâ in receipts.** — Co-trustees (*a*), (as was determined in *Townley v. Sherborne*.) were *formerly* considered responsible for money if they joined in *signing the receipt* for it; but in later times the rule has

(*a*) *Townley v. Sherborne*, Bridg. 35; *Spalding v. Shalmer*, 1 Vern. 303; *Sadler v. Hobbs*, 2 B. C. C. 114; and see *Bradwell v. Catchpole*, cited

Walker v. Symonds, 3 Sw. 78, note (*a*); but said by Lord Cowper, *Fellows v. Mitchell*, 2 Vern. 516, to be contrary to natural justice.